

DEPARTMENT C33 LAW AND MOTION
Judge Sandy N. Leal

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If counsel wish to submit on the tentative ruling, please call the Court Clerk (657-622-5233) to notify the Court that ALL parties are submitting on the tentative and no appearance will be necessary. The tentative will then become the final ruling. If no one appears at the hearing the tentative will be the final ruling. Either side may appear and argue the Court's tentative ruling.

PREVAILING PARTY SHALL GIVE NOTICE OF THE FINAL RULING TO EACH PARTY and PREPARE AN ORDER/JUDGMENT FOR THE COURT'S SIGNATURE IF THE MOTION IS DISPOSITIVE OF A PARTY OR THE CASE.

All appearances are now IN PERSON OR ZOOM.

APPEARANCES: Department C33 is currently participating in the Online Check-in/Zoom Pursuant to Administrative Order No. 21/07 for non-evidentiary hearings, including law and motion. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. No in-person appearances will be permitted without a further order of the court upon a showing of good cause. Once the online check-in is completed, counsel and self-represented parties will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room while the clerk provides access to the video hearing. Check-in instructions and instructional video are available on the court's website.

PUBLIC ACCESS: In those instances where proceedings will be conducted only by remote video and/or audio, access will be provided to interested parties by contacting the courtroom clerk, preferably 24 hours in advance. No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

You must provide your own remote court reporter (unless you have a fee waiver and request one in advance).

TENTATIVE RULINGS ON LAW & MOTION MATTERS

IN PERSON OR ZOOM APPEARANCES

Date: September 21, 2023 – 10:00 a.m.

#	Case Name	Tentative
1	2022-01268902 <i>Lin vs. Animal Services Center</i>	OFF CALENDAR
2	2022-01283882 <i>Chernichovski vs. Evloev</i>	Application for Right to Attach Order/Write of Attachment Plaintiff Michael Chernichovski's Unopposed Application for Right to Attach Order is GRANTED. As an initial matter, the Court notes that Defendant Ruslan Evloev was not served. Defendant is not required to be served because he is

		in default. (Code Civ. Proc. § 1010; see <i>Sporn v. Home Depot USA, Inc.</i> (2005) 126 Cal.App.4th 1294, 1301.) Attachment is a prejudgment remedy that allows a creditor to have a lien on the debtor's assets until final adjudication of the claim sued upon. (Code Civ. Proc. § 481.010, et seq.) Upon filing of the complaint, or at any time thereafter, the plaintiff may apply for a right to attach order ("RTAO") & writ of attachment by filing an application with the court in which the action is brought. (Code Civ. Proc. § 484.010.) In the discretion of the court, the amount to be secured by the attachment may include estimated costs and allowable attorney's fees. (Code Civ. Proc. §§ 482.110 & 483.015.) The court may only issue a RTAO if it finds the following: (1) The claim upon which the attachment is based is one upon which an attachment may be issued - i.e., the claim is: (a) for money based on contract; (b) of a fixed or readily ascertainable amount not less than \$500; (c) either unsecured or secured by personal property; and (d) against an individual, that the claim arises out of the conduct by the individual of a trade, business, or profession.; (2) The plaintiff has established the probable validity of the claim upon which the attachment is based.; (3) The attachment is not sought for any purpose other than the recovery on the claim upon which the attachment is based.; (4) The amount secured by the attachment is greater than zero. (Code Civ. Proc. §§ 483.010 & 484.090.) Here, the claim is based on a breach of contract of a fixed amount not less than \$500, which is unsecured. (Compl. ¶¶ BC-2.) As previously noted, the amount sought to be secured is \$233,295.50. (Application, ¶ 8.) Plaintiff establishes the claim is on upon which an RTAO may be based; Plaintiff has established the probability of the claim; the attachment does not appear to be sought for any purpose than the recovery on the claim which the attachment is based; and the amount secured by the attachment is greater than zero. (Chernichovski Decl. ¶¶ 2-9; Exs. A and B thereto.) Based on the foregoing, the Court GRANTS Plaintiff Michael Chernichovski's Unopposed Application for Right to Attach Order.
3	2021-01194029 <i>Davidson vs. The Boeing Company, Inc.</i>	OFF CALENDAR
4	2023-01318221 <i>Flint vs. Sun Haven Care, Inc.</i>	Demurrer to Complaint Defendants Sun Haven Care, Inc. dba Terrace View Care Center, NAHS Southeast, Inc. and NAHS Holding, Inc.'s Demurrer to the Complaint is SUSTAINED without leave to amend as to the first cause of action and otherwise OVERRULED.